

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
CONNIE MCGEE, NATHAN DIXON,
EDWIN BONILLA, AND ANTHONY ASHLEY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER,
WARING, TAX ID # 905560, 32ND PCT.
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER ANTHONY PUNTINI, TAX ID # 941485,
INDIVIDUALLY AND AS A POLICE OFFICER,
AND POLICE OFFICER JANE DOE AND JOHN DOES
#1-#12, SUED HEREIN IN FICTICIOUS
CAPACITIES AS THEIR IDENTITIES ARE PRESENTLY
UNKNOWN, EACH INDIVIDUALLY AND AS POLICE
OFFICERS,

Defendants,
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy
of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 22, 2015



Jeffrey E. Emdin, Esq.
EMDIN & RUSSELL, LLP.
Attorneys for the Plaintiffs
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

SUMMONS**INDEX NO.**

Plaintiffs designate New
York County as the Place
of trial. The basis of venue
is NY County is the place
where the cause of action
arose.

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Waring,
Police Officer Puntini
c/o 32nd pct.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CONNIE MCGEE, NATHAN DIXON,
EDWIN BONILLA, AND ANTHONY ASHLEY,

Plaintiff(s),
-against-

VERIFIED COMPLAINT
INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER,
WARING, TAX ID # 905560, 32ND PCT.
INDIVIDUALLY AND AS A POLICE OFFICER,
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CAPACITIES AS THEIR IDENTITIES ARE PRESENTLY
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OFFICERS,

Defendant(s),
-----X

Plaintiffs, Connie McGee, Nathan Dixon, Edwin Bonilla and Anthony Ashley by their attorneys,
EMDIN & RUSSELL, LLP, as and for a Verified Complaint allege as follows:

PARTIES

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as the "City" was, and still is, a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter respectively referred to as "NYPD" , including all the Police Officers therein.
3. Upon information and belief Police Officer Waring, hereinafter referred to as "Waring" at all times hereinafter mentioned, and on the 10th day of June, 2014 was employed as a Police

Officer by the “City” and/or “NYPD”, was assigned tax id # 905560, and at all relevant times set forth below was assigned to the 32nd pct. and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

4. Upon information and belief Police Officer Anthony Puntini, hereinafter referred to as ‘Puntini’ at all times hereinafter mentioned, and on the 10th day of June, 2014 was employed as a Police Officer by the “City” and/or “NYPD”, was assigned to the 32nd pct. and assigned tax ID# 941485, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.

5. Upon information and belief Police Officers Jane Doe and John Does #1-#12, sued herein in fictitious capacities as their names are currently unknown, hereinafter referred to as ‘the Does’ at all times hereinafter mentioned, and on the 10th day of June 2014 was/were employed as a Police Officer(s) by the “City” and/or “NYPD”, and at all relevant times set forth below was assigned to the 32nd pct. and acted in the capacity as Police Officers and employee of the City of New York, and/or New York City Police Department.

6. Hereinafter the above named police officers, “Waring”, “Puntini” and “the Does” are collectively referred to as “the officers”.

7. The incident set forth below occurred inside 220 West 141st Street apt 1b New York, hereinafter referred to as the premises on June 10, 2014 at approximately 2:30 p.m.

8. At all relevant times hereinafter mentioned, plaintiff Connie McGee hereinafter referred to as “McGee”, was a resident of New York County , residing at 220 West 141st Street apt 1b, New York, New York .

9. At all relevant times hereinafter mentioned, plaintiff Nathan Dixon, hereinafter referred to as “Dixon”, was a resident of New York County , residing at 220 West 141st Street apt 1b, New York, New York .

10. At all relevant times hereinafter mentioned, plaintiff, Edwin Bonilla, hereinafter referred to as “Bonilla”, was a resident of New York County and the lawful guest and invitee of McGee and was present at the “premises” on June 10, 2014 at approximately 2:30 p.m..

11. At all relevant times hereinafter mentioned, plaintiff, Anthony Ashley, hereinafter referred to as “Bonilla”, was a resident of New York County and the lawful guest and invitee of McGee and was present at the “premises” on June 10, 2014 at approximately 2:30 p.m..

12. McGee, Dixon, Bonilla and Ashley shall hereinafter collectively be referred to as the “plaintiffs”.

13. The “plaintiffs” have each individually filed Notices of Claim and Supplemental Notices of Claim advising of the nature of their claims. The City has held a 50 H hearing for each plaintiff.

14. The defendants have not offered to settle the “plaintiffs’ claims.

15. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

16. On June 10, 2014 at approximately 2:15 p.m. plaintiffs McGee, Bonilla and Ashley were inside “the premises” when the police knocked on the door to McGee’s apartment..

17. McGee answered the door and two police officers were outside her apartment, inquiring whether anyone ran into her apartment. McGee responded “no”. The officers asked permission to search the apartment and McGee again responded “no”.

18. As she was talking to the police, Dixon came home and inquired what was going on. The officers asked if he was coming and going. Dixon replied that he is coming into the apartment and walked past the officers. McGee closed the door to the premises.

19. Approximately 15 minutes later numerous officers arrived at 220 West 141st Street.
20. Soon there was loud banging on the door to the premises. Upon information and belief the Sergeant was ordering them to open the door. McGee went to the front door and as she went to open the door the officers pushed it open breaking the door lock and knocking her backward.
21. The officers did not display a warrant, did not advise that they had a warrant, and upon information and belief did not possess a search warrant.
22. Numerous officers rushed into the premises.
23. Officers were yelling "everyone up and hands behind your back".
24. Ashley was sleeping on the couch when the officers rushed in.
25. The officers shook and woke Ashely up, made him stand up and handcuffed him. Ashley asked what was going on and got no response. The officer searched him and removed his identification from his pocket. Ashley told the officer that he lived in the next building over; 222 West 141st Street, and that he was there to celebrate his birthday.
26. A female police officer grabbed and held McGee's hands behind her back.
27. One of the officers came up to Dixon and ordered him to stand up, that he was under arrest. Upon information and belief that individual was a police Sergeant.
28. The Sergeant handcuffed Dixon and refused to answer what was going on.
29. An officer patted Dixon down.
30. Dixon told the Sergeant that he lived in the apartment.
31. One of the officers yelled to the Sergeant. "he's good I saw him coming in take off the cuffs". However the officers left the handcuffs on Dixon.
32. Bonilla was in the rear bedroom with the door closed.
33. He heard a knock on the bedroom door and a female police officer opened the door and asked the occupants of the bedroom to step outside.

34. Bonilla exited the bedroom.
35. The female officer escorted Bonilla out of the bedroom to the livingroom.
36. The female officer searched Bonilla.
37. Then a male officer searched Bonilla.
38. Bonilla was handcuffed.
39. Bonilla, Ashley and Dixon were arrested.
40. McGee told the officers that "they" were her guests, "This is my house. This is my family".
41. Bonilla and Ashley were transported in handcuffs to the precinct in the same vehicle.
42. The transporting officers refused to tell them why they were being arrested.
43. Once at the precinct a more intrusive search of Bonilla was conducted where his shirt was lifted and he was touched in the groin area. No contraband was found on his person.
44. The officer removed Bonilla's belt and shoe laces.
45. Bonilla was placed in a cell.
46. Bonilla produced ID showing that he lived at 218 West 141st Street, which together with 220 and 222 were, upon information and belief, part of the West Harlem Associates Buildings.
47. The officer told Bonilla that he was being arrested for trespassing.
48. Bonilla told the officer that he was a guest of McGee.
49. The officer told Bonilla that he was still being arrested.
50. Bonilla was held for approximately five hours in custody before being released with a Desk Appearance Ticket to appear in court to answer the charge of trespassing.
51. Ashley was searched at the precinct. His cell phones were removed.
52. He was placed in a holding cell for approximately five hours
53. Ashley inquired why he was arrested and got no response..

54. Ashely asked to use the phone at the precinct, but the officer ignored his request.
55. Ashley was released from custody with a Desk Appearance Ticket to answer the charge of trespassing.
56. Ashely asked how could he be getting a ticket for trespassing when family lives at the house and he was visiting. The officer told Ashley that he's "not supposed to be there. It's not his address".
57. Dixon who resided at the premises and had just returned home was also arrested and transported to the precinct.
58. Dixon was searched both inside the apartment and outside the premises, There was no contraband on him.
59. Dixon heard the "sergeant" instruct the other officers to search every room in the apartment.
60. Upon information and belief officers searched the apartment, opening drawers in the bedroom and kitchen and closets.
61. No contraband was found in the apartment.
62. Dixon was taken to the precinct and placed in a holding cell. Once again he was searched and this time they removed his shoe laces and belt.
63. Dixon was told that he was being arrested for trespassing.
64. Dixon informed the officer that he lived in the apartment.
65. The officer left and returned several hours later telling Dixon that the Sergeant is not going to go for using this address as your residence. Dixon told the officer that he lived there for years. The officer told Dixon that the Sergeant will not let him go if he uses this address, and advised Dixon to use a different address.
66. The officer told Dixon to use his mother's old address, 218 West 141st Street, New York,

NY.

67. Dixon advised the officer that his mother had not resided there in over 8 years.

68. Nevertheless, the officer issued Dixon a summons for disorderly conduct and used the address 218 East 141st Street.

69. After approximately four hours Dixon was released from custody.

70. While the officers held Dixon, Ashley and Bonilla at the precinct, McGee arrived at the precinct to find out what was going on. McGee asked one of the officers at the precinct, who had been in her apartment,, why are they arrested?

71. The officer told McGee that they were being arrested for trespassing.

72. Once again McGee told the officer “how can they be trespassing in my apartment when I allowed them to stay there”.

73. The officer told McGee to take it up with her landlord.

74. Bonilla was issued Desk Appearance Ticket “DAT” number 032-00576 by PO Waring.

75. The DAT charged Bonilla was trespass and required him to attend court on the 29th of July, 2014.

76. Bonilla appeared in court on July 29, 2014 and found out that on July 10, 2014 all charges were dismissed against him.

77. Ashely was given a DAT number 032-00575 by PO Puntini charging him with trespass. And requiring Ashley to appear in court to answer the charges on July 29,,2014.

78. Ashley appeared in court on July 29, 2014 and found out that on July 10, 2014 all charges were dismissed against him.

79. PO Waring issued Dixon Summons number 4417283689 charging Dixon with Disorderly conduct.

80 The summons falsely states that Dixon made a statement to the effect that “I’m visiting

my girlfriend”.

81. The summons contains an improper address.

82. Dixon was issued a New York State Drivers License with the address 220 W141st Street apt 1b, NY, NY

83. Dixon was caused to attend court and was advised that there was no case pending against him.

84. The plaintiffs did not commit any crime on the above referenced date.

85. All arrests, imprisonment, and the physical contact were all without just cause, provocation and said actions were excessive, offensive to each Plaintiff, unprivileged and without their consent.

86. The search of the premises was without Mack and Dixon’s consent and without proper legal authority

87. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST THROUGH THIRD CAUSES OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE ARREST ON BEHALF OF THE PLAINTIFFS
DIXON, ASHLEY AND BONILLA WITH A CAUSE OF ACTION RESPECTIVELY
ALLEGES:**

88. The Plaintiffs Dixon, Ashley and Bonilla repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "87" with the same force and effect as if more fully and at length set forth herein.

89. That on the 10TH day of June, 2014, at the approximate hours of 2:30 P.M., the defendants, and their agents, servants and/or employees intentionally handcuffed, arrested and imprisoned the plaintiffs Dixon, Ashley and Bonilla without any just cause or grounds therefore.

90. Each of said plaintiffs was held against his will under full force of arms until he was released from the 32nd pct. at approximately 6:00 p.m..

91. Each plaintiff, i.e. Dixon, Ashley, and Bonilla was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

92. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuffed and arrest the above named plaintiffs; each of the plaintiffs was conscious of his arrest and confinement; each of the plaintiffs did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.

93. That by reason of the aforesaid false arrest and false charges filed against Dixon he was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.

94. That by reason of the aforesaid false arrest and false charges filed against Ashley he was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.

95. That by reason of the aforesaid false arrest and false charges filed against Bonilla he was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said plaintiff has been otherwise damaged.

96. That by reason of the aforesaid, the plaintiff, Dixon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

97. That by reason of the aforesaid, the plaintiff, Ashley has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

98. That by reason of the aforesaid, the plaintiff, Bonilla has been damaged in a sum

exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH THOUGH THE SEVENTH CAUSES OF ACTION ON
BEHALF OF ALL PLAINTIFFS AGAINST ALL NAMED DEFENDANTS FOR FALSE
IMPRISONMENT EACH ALLEGES:**

99. The Plaintiffs, McGee, Dixon, Ashley and Bonilla repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "98" with the same force and effect as if more fully and at length set forth herein.

100. That beginning on the 10th day of June, 2014, at the approximate hour of 2:30 P.M., the defendants, and their agents, servants and/or employees intentionally seized, moved, and restricted the movement and thereby imprisoned each of the plaintiffs without any just cause or grounds therefore.

101 Each of said plaintiffs were held against his or her will under full force of arms

102. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the above plaintiffs were guilty of any crimes, or that the defendants had just cause to imprison each of the plaintiffs referenced above.

103. The plaintiffs were wholly innocent of any crime and did not contribute in any way or manner to his or her arrest or imprisonment by the defendants, their agents, servants and/or employees and each was forced to submit to the aforesaid arrest and imprisonment entirely against his or her will.

104. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiffs; each of the plaintiffs were conscious of his or her confinement; the plaintiffs did not consent to the confinement; and the confinement was not otherwise privileged.

105. That by reason of the aforesaid, the plaintiff, McGee, has been damaged in a sum

exceeding the jurisdictional limits of the lower courts.

106. That by reason of the aforesaid, the plaintiff Dixon has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

107. That by reason of the aforesaid, the plaintiff, Ashley, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

108. That by reason of the aforesaid, the plaintiff, Bonilla, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR AN EIGHTH THROUGH ELEVENTH CAUSES OF ACTION ON
BEHALF OF ALL OF THE NAMED PLAINTIFFS, AGAINST ALL NAMED
DEFENDANTS FOR ASSAULT AND BATTERY EACH ALLEGES:**

109. “The plaintiffs” McGee, Dixon, Ashley and Bonilla repeat, reiterate and reallege each and every allegation contained in paragraphs marked “1” through “108” with the same force and effect as if fully set forth herein.

110. That commencing on the 10th day of June, 2014, commencing at the approximate hour of 2:30 9.M. inside 218 West 141st Street apt 1b, New York, NY and in the case of plaintiffs Dixon, Ashley and Bonilla continuing inside the 32nd pct. the defendant officers and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the defendant the “City” and “NYPD”, without just cause or legal cause seized, searched, grabbed, and held each of the plaintiffs and , handcuffed, and fingerprinted and photographed the plaintiffs Dixon, Ashley and Bonilla.

111. Upon information and belief the officers had absolutely no reason or just cause to assault and batter the plaintiffs.

112. The assault and battery and physical contact was not privileged

113. The assault and battery took place while the plaintiffs had committed no crime.

114. That the defendants, their agents, servants and/or employees, including unknown police

officers, and the arresting officers, acting as agents on behalf of the defendant "City" and/or "NYPD", within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered each of the named plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to "the plaintiffs".

115. That said acts caused apprehension of such offensive contact to each of "the plaintiffs", and the defendants caused such batter in and about his or her body and limbs.

116. That by reason of the aforesaid intentional assault and battery, each plaintiff suffered physical and/or psychological injuries to his or her body and mind, and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering and emotional trauma, and that each was otherwise damaged.

117. That by reason of the aforesaid, the plaintiff, McGee, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

118. That by reason of the aforesaid, the plaintiff, Dixon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

119. That by reason of the aforesaid, the plaintiff, Ashley has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

120. That by reason of the aforesaid, the plaintiff, Bonilla has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A TWELFTH THROUGH FIFTEENTH
CAUSES OF ACTION FOR NEGLIGENCE AGAINST THE "CITY"
EACH OF THE PLAINTIFFS ALLEGE

121. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "120" with the same force and effect as if more fully and at length set forth herein.

122. That the City and/or NYPD were at all relevant times hereunder, negligent in the screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the defendant officers named herein

123 That as a result of their negligence, the defendants entered McGee and Dixon's home without a warrant; damaged McGee and Dixon's property, illegally searched the premises; imprisoned the plaintiff, handcuffed Dixon, Ashley and Bonilla and arrested, assaulted and battered, maliciously prosecuted, injured, and had their constitutional and civil rights violated.

124. That by reason of the aforesaid, the plaintiff, McGee, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

125. That by reason of the aforesaid, the plaintiff, Dixon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

126. That by reason of the aforesaid, the plaintiff, Ashley, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

127. That by reason of the aforesaid, the plaintiff, Bonilla, has been damaged in a sum exceeding the jurisdictional limits of the lower courts

AS AND FOR A SIXTEENTH THROUGH EIGHTEENTH
CAUSES OF ACTION FOR MALICIOUS PROSECUTION
AGAINST THE DEFENDANTS, DIXON, ASHLEY AND
BONILLA ALLEGE

128. The plaintiffs Dixon, Ashley and Bonilla repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "127" with the same force and effect as if more fully and at length set forth herein.

129. That the defendant officers while acting within the scope of their employment arrested Dixon, Ashley and Bonilla for crimes that they knew or should have known that they did not commit.

130. That Dixon, Ashley and Bonilla were innocent of all crimes that they were charged with

committing by the defendants.

131. That the defendants arrested said plaintiffs, filled out false police reports with the malicious intent to prosecute, have the plaintiffs prosecuted and did prosecute them for crimes they knew they were innocent of.

132. That the actions of the defendants caused plaintiffs Dixon, Ashley and Bonilla to appear in court to defend themselves against the false charges.

133. That all criminal charges were dismissed against Dixon, Ashley and Bonilla.

134. That by reason of the aforesaid, the plaintiff, Dixon, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

135. That by reason of the aforesaid, the plaintiff, Ashley has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

136. That by reason of the aforesaid, the plaintiff, Bonilla has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR THE NINETEENTH THROUGH TWENTY-SECOND CAUSES OF
ACTION AGAINST THE CITY AND/OR NYPD UNDER 42 USC 1983 MONELL
CLAIM THE PLAINTIFFS ALLEGE:**

137. "The plaintiffs" repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "136" with the same force and effect as if more fully and at length set forth herein.

138. At all times material to this complaint, the defendant the City of New York, acting through New York City Police Department, had in effect de facto policies, practices, and/or customs that were a direct and proximate cause of the unconstitutional conduct of the defendant officers set forth in this complaint.

139. At all times material to this case "THE City" and/or "NYPD" were charged with the responsibility of testing, analyzing, screening, hiring, assigning, training, supervising,

monitoring, disciplining, investigating and/or retraining the officers employed by them, including the defendant officers herein

140. The City” and/or “NYPD” de facto policies, practices and customs include, inter alia: the failure to properly screen, test, and train police officers; the retention of unfit officers; failing to retrain fit and unfit officers; improperly assigning officers; failing to properly supervise and/or monitor unfit officers; permitting , condoning and/or acting with deliberate indifference to the need to or/for additional training ; testing; supervision, monitoring, enforcement of guidelines, discipline officers who violate guidelines; establishing independent oversight of officers; permitting a conspiracy of silence; and failing to properly investigate allegations of : false arrests, excessive use of force; racial targeting or bias; illegal search and seizure; illegal entries into citizens homes; destruction of property; illegal conduct, improper use of police equipment, and police cover-ups; permitting officers to fill out false paperwork; signing false complaints and testify falsely; not enforcing patrol guidelines; condoning a code of silence; failing to discipline officers who are present and do not report police misconduct and by retaining officers alleged to have committed said conduct as well as officers present when said conduct was committed, yet failed to intervene or report said misconduct and witness intimidation among other acts of civil rights violations.

141. The City’s and/or NYPD’s conduct leads to a systemic practice and policy within the NYPD wherein officers seem fairly tolerant, both outwardly and inwardly of police brutality, silence in the face of said brutality and/or illegal arrests/searches and seizures.. A systemic practice where officers who report said misconduct are not viewed as “good cops”, but rather as outcasts and snitches and are isolated, ostracized and often transferred.

142. The “City” and/or “NYPD” are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with illegal search

and seizures, illegal entries into citizens homes, confiscating evidence of police brutality/illegality; falsifying evidence, and falsely and maliciously prosecuting innocent civilians.

143. The defendant the City of New York and New York City Police Department had or should have had knowledge of the improper conduct of its employees including the named defendant officers herein which violated the constitutional rights of the citizens of the City of New York , including but not limited to the patterns: of false arrests and ensuing cover-ups; of illegal searches and seizures; illegal use of police equipment; of illegal entry into citizens homes, threats and intimidation. That such act or actions were committed by police officers against the citizens of New York City, including “the plaintiffs” herein by members of NYPD, including all of the named police officer defendants.

144. The defendant the City of New York, and/or New York City Police Department, knew or should have known of the unlawful actions of all of the named police officer defendants through actual and constructive notice of their unlawful activities, including, but not limited to those allegations as set forth herein above.

145. The defendants City of New York, and/or NYPD failed to exercise reasonable care by retaining and not terminating the employment of all said named police officer defendants or taking other appropriate corrective, disciplinary, supervising, monitoring or other actions that would provide safeguards against this very conduct from occurring. The occurrence complained herein is due to the deliberate indifference of, and /or the policies and customs of the defendants, the City of New York, and/or NYPD.

146. On information and belief, the defendants the City of New York and/or New York City Police Department have failed to effectively screen, hire, train, supervise and discipline their police officers, including all of the named defendant police officers, for their propensity for

misconduct, including lack of truthfulness, and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing the named police officer defendants herein to be in a position to unjustifiably manufacture evidence, illegally enter the subject premises, damage property of the subject premises, seize, search, arrest, restrain, threaten and assault “the plaintiffs”, injure the plaintiffs and to otherwise cause them injury and violate their federal and state constitutional rights.

147. On information and belief, one or all of the named police officer defendants have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the City of New York that all of the named police officer defendants were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by “the plaintiffs” herein.

148. On information and belief, the defendant the City of New York and the New York City Police Department, maintained an inadequate structure for risk containment and stress management relative to its police officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient at the time selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; in promoting and retraining unfit police officers in supervisory capacities, and its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit police officers to function at levels of significant and substantial risk to the public.

149. As a result of the foregoing conscious policies, practices, customs and/or usages, the Defendants the City of New York and New York City Police Department, have permitted and

allowed the employment and retention of individuals as police officers, including but not limited to the named defendant officers herein as well as other officers present with them, whose individual circumstances place the public or segments thereof at substantial risk of being victims of violent and fraudulent behavior. Such policies, practices, customs, and/or usages are a direct and proximate cause of the conduct alleged herein and are otherwise a direct and proximate cause of the injuries to “the plaintiffs” herein.

150 As a direct and proximate result of the City of New York’s , NYPD’s wrongful policies, practices, customs and/or usages complained of herein or the deliberate indifference thereto, “the Plaintiffs” individually and collectively, suffered false arrest and imprisonment, malicious prosecution, deprivation of freedom, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.

151. That aforementioned acts violated “the plaintiffs” constitutional rights as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

152. That by reason of the aforesaid, the plaintiff, McGee, has been injured in mind and body and has been damaged.

153. That by reason of the aforesaid, the plaintiff, Dixon has been injured in mind and body and has been damaged.

154. That by reason of the aforesaid, the plaintiff, Ashley, has been injured in mind and body and has been damaged.

155. That by reason of the aforesaid, the plaintiff, Bonilla, has been injured in mind and body and has been damaged.

156. That by reason of the aforesaid, McGee has been damaged and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983

and 1988, and such other relief as to the court may seem just and proper.

157. That by reason of the aforesaid Dixon has been damaged and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

158. That by reason of the aforesaid, Ashley has been damaged and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

159. That by reason of the aforesaid, Bonilla has been damaged and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS FOR A TWENTY-THIRD THROUGH THE TWENTY-SIXTH CAUSES OF ACTION
AGAINST ALL NAMED DEFENDANT OFFICERS FOR 42 U.S.C. 1983 VIOLATIONS
EACH OF THE PLAINTIFFS ALLEGE:**

160 "The plaintiffs" repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "159" with the same force and effect as if more fully and at length set forth herein.

161. By the aforesaid acts, the defendant "officers" acting under color of law, individually and collectively have violated each plaintiff's rights: to privacy under the First and Fourteenth Amendments, to have their homes and persons be free of illegal searches and seizures under the 4th and 14th Amendments; and to Equal protection of the laws under the Fourteenth Amendment to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 USC 1983.

162. That in falsely arresting and/or detaining each of the plaintiffs, the defendant officers violated each of the plaintiffs rights under the 4th and 14th Amendments which prohibit

unreasonable seizures of persons.

163. That the defendant officers lacked a warrant and probable cause to arrest Dixon, Bonilla and Ashley.

164. That the police lacked a warrant or exigent circumstances to enter McGee and Dixon's home.

165. That the police lacked a warrant, or probable cause to detain McGee.

166. That the defendant officers maliciously prosecuted Dixon, Bonilla and Ashley violated each of the plaintiffs rights under the 4th and 14th Amendments.

167. That the police officers unreasonable detained the plaintiffs.

168. That the officers conducted a warrantless search of the subject premises, and they did so without probable cause

169. The conduct and actions of the named defendant police officers, acting under color of law, in illegally and forcibly entering 220 West 140th Street apt 1b, NY, NY, in seizing each plaintiff, in detaining each plaintiff, in searching plaintiff's Dixon, Bonilla and Ashley; in arresting Dixon, Bonilla and Ashley, in handcuffing and imprisoning Dixon Ashley and Bonilla, in filing false reports, in providing false evidence, in maliciously prosecuting Dixon, Ashely and Bonilla, and in conspiring against "the plaintiffs", was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and did cause loss of liberty, emotional harm, pain and suffering in violation of each of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq.,

170. Each of the defendant police officers and probation officer's actions, individually and collectively deprived each of the Plaintiffs of his/her rights including, but not limited to the right to privacy in her home; and protection against unlawful seizure of their persons and under Title

42 U.S.C. 1983 et seq.

171. That by reason of the aforesaid, McGee has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

172. That by reason of the aforesaid, Dixon, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

173 That by reason of the aforesaid, Bonilla, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

174 That by reason of the aforesaid, Ashley, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A TWENTY-SEVENTH THROUGH THE THIRTIETH CAUSES
OF ACTION AGAINST ALL NAMED DEFENDANT OFFICERS FOR CONSPIRACY
UNDER 42 U.S.C. 1983 EACH OF THE PLAINTIFFS ALLEGE:**

175 "The plaintiffs" repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "174" with the same force and effect as if more fully and at length set forth herein.

176. By the aforesaid acts, two or more of the defendant "officers" acting under color of law,

conspired to violate each plaintiff's rights: to privacy under the First and Fourteenth Amendments, to have their homes and persons be free of illegal searches and seizures under the 4th and 14th Amendments; and to Equal protection of the laws under the Fourteenth Amendment to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 USC 1983.

177. That upon information and belief the defendants conspired to illegally enter the premises leased to McGee, resided in by Dixon and with whom Ashley and Bonilla were invited guests.

178. That upon information and belief the defendants conspired to illegally detain and seize the plaintiffs..

179. That upon information and belief the defendants conspired to illegally arrest and imprison plaintiffs Dixon, Bonilla and Ashley.

180. That upon information and belief the defendants conspired to maliciously prosecute plaintiffs Dixon, Bonilla and Ashley.

181. That upon information and belief the defendants conspired to file false police reports against Dixon, Bonilla and Ashley.

182. That upon information and belief the defendants conspired to change Dixon's address on the police reports

183. That upon information and belief the defendants conspired to cover-up their misconduct as stated within this complaint

184. That as a result of said conspiracy the plaintiff suffered loss of liberty, arrest, embarrassment and damages therefrom.

185. That by reason of the aforesaid, McGee has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs,

attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

186. That by reason of the aforesaid, Dixon, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

187 That by reason of the aforesaid, Bonilla, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

188 That by reason of the aforesaid, Ashley, has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants for a sum to be determined by the trier of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the thirtieth causes of action, plus attorneys fees, costs, disbursements and punitive damages on the nineteenth through the thirtieth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
April 22, 2015



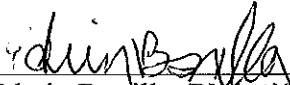
Jeffrey L. Emdin, Esq.
Emdin & Russell, LLP.
Attorneys for plaintiffs

Office and P.O. Address
499 Seventh Avenue 12N
New York, NY 10018
212-683-3995

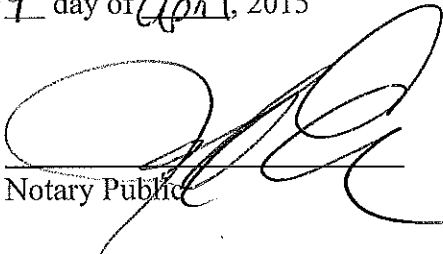
CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Edwin Bonilla, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.


Edwin Bonilla, **Plaintiff**

Sworn to before me this
29 day of April, 2015

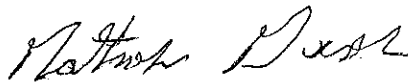

Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018

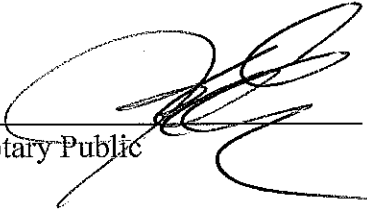
CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Nathan Dixon, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.


Nathan Dixon, **Plaintiff**

Sworn to before me this
27 day of April, 2015


Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018

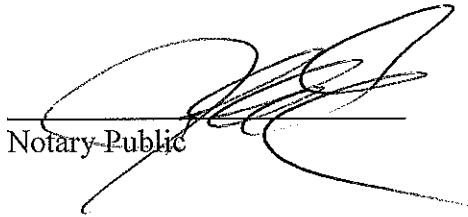
CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Anthony Ashley, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.

Anthony Ashley
Anthony Ashley, **Plaintiff**

Sworn to before me this
29 day of April, 2015


Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018

CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Connie McGee, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Verified Complaint , and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.



Connie McGee, **Plaintiff**

Sworn to before me this
27 day of April, 2015

Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

CONNIE MCGEE, NATHAN DIXON, EDWIN BONILLA, AND ANTHONY ASHLEY

Plaintiff(s)

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER WARING, TAX ID# 905560, 32ND PCT. INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER ANTHONY PUNTINI, TAX ID #941485, INDIVIDUALLY AND AS A POLICE OFFICER, AND POLICE OFFICER JANE DOE AND JOHN DOES #1-#12, SUED HEREIN IN FICTICIOUS CAPACITIES AS THEIR IDENTITIES ARE PRECENTLY UNKNOWN, EACH INDIVIDUALLY AND AS POLICE OFFICERS

Defendant(s)

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL
Attorney for Plaintiffs
499 Seventh Avenue Suite 12N
New York, NY 10018
(212) 683-3995

TO: Corporation Counsel
Attorney for Respondents
100 Church Street
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 29, 2015

Signature

Jeffrey L. Emdin, Esq.

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PLEASE TAKE NOTICE

[] NOTICE OF ENTRY
that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

[] NOTICE OF SETTLEMENT that an order of which the within is a true copy will be
presented for settlement to the HON. one of the judges of the within named Court, at
on 20__